Harris County District Court

Cause No. 2025-CV-0044

Luke Williams, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-31-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those allegations specifically admitted herein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Defendant further asserts the following affirmative defenses.

First, Plaintiff's alleged injuries were not proximately caused by any negligence of Defendant. The impact between the vehicles was of low speed and minimal force, and any injuries claimed by Plaintiff were caused by pre-existing conditions, subsequent events, or other causes unrelated to the collision.

Second, Plaintiff failed to mitigate damages. To the extent Plaintiff did not seek timely and reasonable medical care, follow prescribed treatment, or ohterwise act reasonably to minimize his or her alleged losses, any recovery must be reduced accordingly.

Third, Plaintiff's recovery, if any, is subject to proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Should the trier of fact find that Plaintiff's own negligence contributed to the occurrence, Defendant requests that any damages be reduced in proportion to Plaintiff's percentage of responsibility.

Defendant reserves the right to amend this answer as discovery proceeds.